

24VECV06180 24VECV06180

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV06180 Hearing Date: August 28, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Bryan James,

Plaintiff,

v.

Sedigheh Ghaiemy

Mahdavy,

Defendant.

Case Number Department

24VECV06180 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Deem RFAs Admitted

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant Motion; (2) Grant request
for sanctions in the reduced sum of \$1,960.00.

I.

BACKGROUND

This
is a landlord-tenant dispute. Plaintiff Bryan James ("Plaintiff") resides at
20957 Community Street, Canoga Park, California 91304 (the "Subject Property").
(Complaint ¶ 1.) Defendant Sedigheh Ghaiemy Mahdavy ("Defendant") owns and
manages the Subject Property. (Complaint ¶ 2.)

On
December 9, 2024, Plaintiff filed a complaint against Defendant and Does 1 to
50, alleging causes of action for: (1) breach of implied warranty of
habitability; (2) tortious breach of implied warranty of habitability; (3)
negligence; (4) intentional infliction of emotional distress; (5) violation of
unlawful business practices (Business & Professions Code section 17200);
and (6) violation of Los Angeles County Code of Ordinances section 8.52.130(B).

On
January 6, 2025, Cross-Complainant Sedigheh Ghaiemy Mahdavy filed a
cross-complaint against Cross-Defendant Bryan James, alleging causes of action
for: (1) breach of lease agreement; (2) property damage; (3) violation of Los
Angeles County Code of Ordinances section 12.03.12.21A,1.(a) and 12.21C,1.(g)
of the L.A.M.C.; and (4) personal injury of emotional distress negligence.

On
June 18, 2026, Plaintiff filed a motion to deem the truth of matters specified
in his Requests for Admission to Defendant Sedigheh Ghaiemy Mahdavy, Set Two
(the "Motion"). As of August 20, 2026, no opposition has been filed.

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II.

LEGAL

STANDARD

Unless

there has been an extension or the court has shortened the time to respond, responses to requests for admission are due within 30 days after service, plus five calendar days for service by mail “if the place of address and the place of mailing is within the State of California.” (Code Civ. Proc., §§ 2033.250, subd. (a), 1013 subd. (a).)

When

a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The party who failed to respond waives any objections to the requests, unless, upon motion, the court grants them relief from the waiver, upon a showing that: (1) “[t]he party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230”; and (2) “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2033.280, subd. (a)(1), (2).) The court shall grant a motion to deem admitted requests for admissions, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c).)

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The

court shall grant a motion to deem admitted requests for admissions, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc., § 2033.280, subd. (c).)

“It is mandatory

that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

III.

DISCUSSION

Plaintiff

moves for an order deeming the truth of the matters specified in Requests for

Admission, Set Two ("RFA") admitted as to Defendant. (Motion p. 1.) Plaintiff's counsel submits a declaration stating Plaintiff served Defendant with the RFAs by mail and email on May 4, 2026. (Rochlin Declaration ¶ 2.) Plaintiff's counsel received a rejection from Plaintiff's email address, stating the mailbox was full. (Rochlin Declaration ¶ 2.) As of June 18, 2026, Defendant had not provided Plaintiff with responses to the RFAs. (Rochlin Declaration ¶ 4.)

Defendant's

responses to the RFAs were due by June 8, 2026. Defendant failed to provide responses by that date. (Rochlin Declaration ¶ 4.) Thus, Plaintiff is entitled to an order deeming the truth of the matters specified in the RFAs admitted as to Defendant.

Plaintiff

requests \$2,435.00 in monetary sanctions against Defendant in the notice of Motion but requests \$2,310.00 in monetary sanctions against Defendant in the Motion. (Motion p. 5.) This reflects the \$60.00 filing fee, 1.0 hour of attorneys' fees drafting the Motion, and an anticipated 0.5 hours of attorneys' fees reviewing Defendant's opposition and preparing a reply and 1.0 hour to appear at the Motion's hearing, at \$950.00 per hour. (Rochlin Declaration ¶ 5.)

Defendant

failed to timely serve Plaintiff with responses to the RFAs. Thus, sanctions are mandatory. The court further finds fees relating to the opposition and reply are not warranted because Defendant filed no opposition.

Thus,

the court grants Plaintiff's request for monetary sanctions against Defendant in the reduced sum of \$1,960.00, reflecting the \$60.00 filing fee and 2.0 of attorneys' fees to prepare the Motion, at \$950.00 per hour.

IV.

CONCLUSION

For

the foregoing reasons, the Motion is granted. The court also grants Plaintiff's request for monetary sanctions against Defendant in the reduced sum of \$1,960.00, to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this order.

Dated: August 28, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court